

25CHCV04125 25CHCV04125

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 25CHCV04125 Hearing Date: July 6, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 3, 2026

MOTION TO COMPEL FURTHER

DISCOVERY RESPONSES

(Form

Interrogatories, and Requests for Production of Documents, Set One)

Los Angeles Superior Court

Case # 25CHCV04125

Motion

filed: 4/28/26

MOVING

PARTY: Plaintiff

Roberto Carlos Fajardo Dominguez ("Plaintiff")

RESPONDING

PARTY: Defendant

Stephanie Denise Lafrance ("Defendant")

NOTICE: OK

RELIEF

REQUESTED: An

order compelling Defendant's further responses to the following discovery requests:

.

Plaintiff's

Form Interrogatories, Set One, Nos. 16.2–16.10; and

.

Plaintiff's

Requests for Production of Documents ("RFPs"), Set One, No. 1.

Plaintiff

also seeks monetary sanctions in the amount of \$21,090.00 to be imposed against Defendant and her counsel.

TENTATIVE

RULING: The

unopposed motion is granted. Defendant to provide further code-compliant responses to Plaintiff's Form Interrogatories, Set One, Nos. 16.2–16.10; and Plaintiff's RFPs, Set One, No. 1, within 30 days. The Court imposes \$1090.00 in monetary sanctions against Defendant and her counsel

Defendant is reminded to review the 5/3/19 First Amended

General Order Re Mandatory Electronic Filing for Civil. When e-filing

documents, parties must comply with the "TECHNICAL REQUIREMENTS" which are set forth at page 4, line 4 through page 5, line 12 of the Court's 5/3/19 First

Amended General Order Re Mandatory Electronic Filing for Civil (particularly bookmarking declarations and exhibits). (CRC 3.1110(f)(4).) Failure

to comply with these requirements in the future may result in papers being rejected, matters being placed off calendar, matters being continued so

documents can be resubmitted in compliance with these requirements, documents not being considered and/or the imposition of sanctions.

BACKGROUND

This is a personal injury action in which Plaintiff alleges that on 7/16/25, Defendant “negligently made a right turn onto Roscoe Boulevard without maintaining a proper lookout or yielding to oncoming traffic. Defendant’s vehicle struck the front right portion of Plaintiff’s vehicle.” (Compl. p. 5.) On 11/19/25, Plaintiff filed his complaint, alleging against Defendant the following causes of action: (1) Motor Vehicle Negligence; and (2) General Negligence. On 1/6/26, Defendant filed her answer.

On 12/19/25, Plaintiff served his first set of discovery requests on Defendant. (Decl. of Edna Felix ¶ 2.) On 3/3/26, Defendant served her responses thereto.[1] (Id. at ¶ 3.)

On 4/28/26, Plaintiff filed the instant motion to compel further responses to the subject discovery requests. No opposition has been filed to date.

ANALYSIS

A. Meet and Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2030.300, subd. (b)(1); 2031.310, subd. (b)(2); 2016.040.)

Here, Plaintiff’s counsel declares that beginning on 3/19/26, she and Defendant’s counsel met and conferred regarding the issues raised in the instant motion, but the parties were unable to informally resolve the issues. (Felix Decl. ¶¶ 5–8.) Based on the foregoing, the Court finds that counsel has satisfied the preliminary meet and confer requirements under the Civil Discovery Act.

B. Form Interrogatories

“The party to whom interrogatories have been propounded shall respond in writing

under oath separately to each interrogatory by any of the following: (1) An answer containing the information sought to be discovered; (2) An exercise of the party's option to produce writings; or (3) An objection to the particular interrogatory." (Code Civ Proc. § 2030.210, subd. (a).) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ Proc. § 2030.220.) "If an objection is made to an interrogatory or to a part of an interrogatory, the specific ground for the objection shall be set forth clearly in the response." (Code Civ Proc. § 2030.240, subd. (b).)

A propounding party may move for an order compelling further responses to interrogatories if any of the following apply: "(1) An answer to a particular interrogatory is evasive or incomplete; (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc. § 2030.300, subd. (a).) Discovery is relevant if it is admissible as evidence, or "appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc. § 2017.010.) "Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action." (Ibid.)

Here, Plaintiff argues that further responses to Form Interrogatory Nos. 16.2–16.10, which are all interrogatories relating to Defendant's contentions, are warranted. Plaintiff argues that "Defendant asserted the same response to Form Interrogatories Nos. 16.2 through 16.10: 'This interrogatory is premature. See Instructions to Asking Party sec. 2(d).' That blanket objection is improper under the circumstances and does not comply with section 2030.220." (Pl.'s Mot. 6:21–23.)

Plaintiff further argues that "Defendant has already put liability, causation, comparative fault, mitigation, damages, and other contentions at issue through affirmative defenses identified in Defendant's Form Interrogatory No. 15.1 response. Defendant has also stated a factual version of how the collision occurred, including the alleged conduct of Plaintiff and at least one unidentified vehicle that allegedly signaled Defendant to proceed. If Defendant contends that another person contributed to the incident, that Plaintiff was not injured, that Plaintiff's injuries, treatment, costs, lost earnings, or property damage were not caused by the incident or were unreasonable, or that Defendant possesses healthcare-provider

documents not previously identified, Defendant must state the facts, witnesses, and documents supporting those contentions. If Defendant does not presently make any such contention, Defendant can and should say so in a verified response.” (Id. at 6:24–7:5.)

The Court agrees with Plaintiff that Defendant’s responses are evasive, and further notes that Defendant has failed to file any opposition to the instant motion. Accordingly, the Court grants Plaintiff’s motion to compel Defendant’s further responses to Plaintiff’s Form Interrogatories, Set One, Nos. 16.2–16.10.

C. RFP No. 1

California law requires a responding party to respond to each request for production of documents with either a statement of compliance, a representation that the party lacks the ability to comply, or an objection to the demand. (Code Civ. Proc. § 2031.210, subd. (a).) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Code Civ. Proc. § 2031.240, subd. (a).) “If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” (Id. at subd. (c)(1).) A propounding party may move for an order compelling further response to a discovery request if it decides that “a statement of compliance with the demand is incomplete.” (Code Civ. Proc. § 2031.310, subd. (a).)

Here, Plaintiff’s RFP No. 1 seeks the production of any writings regarding the subject incident. (Pl.’s Sep. Stmt. 9:7–18.) In response, Defendant “objects to this request to the extent it seeks documents protected by the attorney-client privilege. Subject to the foregoing, Responding Party states it will produce responsive, non-privileged documents within its possession, custody, or control.” (Id. at 9:19–22.)

Plaintiff argues that “although Defendant served supplemental responses, the response remains defective. Defendant continues to assert an attorney-client privilege objection, stating it will only produce ‘non-privileged

documents.’ This objection is improper. Defendant failed to serve timely responses and therefore waived all objections, including privilege and work product, under Code of Civil Procedure section 2031.300(a). Defendant cannot revive those objections through supplemental responses. Additionally, the response is not code-compliant. Defendant does not clearly state whether all responsive documents have been produced or whether any are being withheld.” (Pl.’s Mot. 7:25–8:5.)

“If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, ... The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product.” (Code Civ. Proc. § 2031.300, subd. (a).) Here, as Plaintiff electronically served his first set of discovery requests on Defendant on 12/19/25, the last day for Defendant to respond was 1/22/26. (Ex. 1 to Felix Decl.; Code Civ. Proc. § 1010.6, subd. (a)(3)(B).) As Defendant did not provide her responses to the subject discovery requests until 3/3/26, Defendant has waived any objections to the discovery requests. (Ex. 2 to Felix Decl.)

Based on the foregoing, the Court finds that further code-compliant responses to Plaintiff’s RFP No. 1 are warranted. Accordingly, the Court grants Plaintiff’s motion to compel Defendant’s further responses to Plaintiff’s RFPs, Set One, No. 1.

D. Sanctions

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to [discovery requests], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.290, subd. (c); 2031.300, subd. (c).) Additionally, “the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).)

Here, Plaintiff requests that the Court impose \$21,090.00 in monetary sanctions to be

imposed against Defendant and her counsel, encompassing: (1) 32 hours of Plaintiff's attorney's time spent reviewing Defendant's discovery responses, preparing the meet-and-confer letter, preparing this motion, memorandum, declaration, and separate statement; and (2) an anticipated 8 hours reviewing any opposition, preparing a reply, and attending the hearing, at counsel's hourly rate of \$500.00 per hour. (Felix Decl. ¶ 9.) Plaintiff also requests \$90.00 in filing fees and a \$1,000.00 sanction under Code of Civil Procedure section 2023.050. (Ibid.)

Based on the foregoing, the Court finds it reasonable to impose monetary sanctions against Defendant and her counsel in the amount of \$1090.00.

CONCLUSION

The unopposed motion is granted. Defendant to provide further code-compliant responses to Plaintiff's Form Interrogatories, Set One, Nos. 16.2–16.10; and Plaintiff's RFPs, Set One, No. 1, within 30 days. The Court imposes \$1090.00 in monetary sanctions against Defendant and her counsel.

[1]

The Court notes that Defendant's proofs of service are defective, as they fail to state the means by which Defendant's discovery responses were served. (Ex. 2 to Felix Decl.)